

Matseti Santhoshi Gude Santhoshi, vs Gude Lahari Krishna, on 7 May, 2025

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

MAIN CASE No.Tr.C.M.P.No.156 of 2025
PROCEEDING SHEET

Sl. No.	DATE	ORDER	OFFICE NOTE
01.	07.05.2025	VGKR, J	

I.A.No.1 of 2025

Heard Sri N. Siva Reddy, learned counsel for the petitioner.

Learned counsel for the petitioner contended that the petitioner is none other than the wife of the respondent/husband, due to the

matrimonial disputes between both the spouses, the petitioner/wife has been residing separately at her parents' house at Rajahmundry, East Godavari District.

He would further contend that in view of the harassment made by the respondent, the petitioner/wife lodged a complaint dated 02.12.2024, against the respondent/husband in F.I.R.No.141 of 2024, for the offences punishable under Sections 85, 351(2) r/w Section 3(5) of B.N.S. Act, 2023 and under Sections 3 & 4 of the Dowry Prohibition Act, 1961, before Mahila Police Station, Rajahmundry, East Godavari District, the same is pending of investigation.

He would further contend that the petitioner/wife filed a Maintenance Case before the Judicial Magistrate of First Class, Rajahmundry, East Godavari District, under Section 125 of Cr.P.C., seeking monthly maintenance from the respondent/husband and she also filed a Domestic Violence case vide D.V.C.(SR)No.1072 of 2025 on the file of the VI Judicial Magistrate of First Class, Rajahmundry, East Godavari District, under Section 12 of the Protection of Women From Domestic Violence Act, 2005, and the two (2) cases are pending for adjudication before the competent Courts at Rajahmundry, against the respondent/husband.

Learned counsel for the petitioner would further contend that to cause unnecessary inconvenience to the petitioner, the respondent/husband had filed F.C.O.P.No.335 of 2025, on the file of the Additional Family Judge Court, Visakhapatnam, under Section 12(1)(c) of the Hindu Marriage Act, 1955, to declare the marriage of the petitioner with the respondent as null and void and the same is also pending for adjudication.

He would further contend that the distance between Rajahmundry and Visakhapatnam, is more

than 200 Kms, it is very difficult for the petitioner/wife to attend the divorce case proceedings before the Additional Family Judge Court, Visakhapatnam, on each and every adjournment without any male support and that she is constrained to file the present transfer petition.

Perused the record.

Considering the submissions made by the learned counsel for the petitioner and for the reasons mentioned in the accompanying affidavit, there shall be an Interim Stay of all further proceedings including the appearance of the petitioner herein i.e., the respondent in F.C.O.P.No.335 of 2025, on the file of the Additional Family Judge Court, Visakhapatnam, till 23.06.2025.

Learned counsel for the petitioner is permitted to take out personal notice to the respondent through Registered Post with Acknowledgment Due and file proof of service before the Registry.

_____ VGKR, J Admit.

Issue notice to the respondent. Post the matter on 23.06.2025.

_____ VGKR, J CVD